

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected. The name of Österreichische Post AG has not been pseudonymized, as the imposition of a "mail block" constitutes a significant part of the complaint, and the role of Österreichische Post AG as a universal service provider is legally defined (§ 3 Z 1 in conjunction with §12 PMG). However, the confidentiality interest of Österreichische Post AG, which is not involved in the proceedings, does not outweigh the public interest in the legally mandated publication of the decision under § 23 Abs. 2 DSG.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Dr. Pauline A*** (first complainant) and her clients (Josef B***, Theresia C***, Peter D***, Henriette D***, E*** union, Manfred F***, Charlotte G***, Nadine G***, Bernarda I***, Oskar H***, Theo J***, Norbert K***, Ulrich M***, Dorian L***, Bernarda L***, Gerda O***, Emil O***, Waltraud P***, Walter P***, Veronika Q***, Ulrich R***, Sebastian S***, Dorian T***, Carola U***, Manfred V***, Manfred W***, Victoria X***, Victoria Y***, Gustav Z***, and Herta Sch***), collectively referred to as the second complainant, dated January 18, 2023, against N*** Data Processing GmbH (first respondent), represented by the law firm Ei*** & We***, and Hon.-Prof. Dr. Walter Ba*** (second respondent) for violation of the right to confidentiality as follows:

1. The complaint of the first complainant is dismissed as unfounded.
2. The supplementary complaint of the first complainant dated May 9, 2023, in which she claimed that the complaint should be extended to the committee of the H*** Bar Association, the Vice President of the H*** Bar Association Dr. Ernesto Vi***, the managing partner of the first respondent Mag. Richard Ei***, the UK*** Bank, and Österreichische Post AG, is rejected.
3. The complaints submitted by the first complainant on behalf of her clients (second complainant) are rejected.
4. The request of the first complainant to initiate an administrative penalty proceeding against the respondents is rejected.

Legal bases: Art. 4, Art. 6, Art. 51 Abs. 1, Art. 57 Abs. 1 lit. f, and Art. 77 Abs. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 Abs. 1, and 24 Abs. 1 and Abs. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 9, 34, and 34a of the Lawyers' Act (RAO), RGBI. No. 96/1868 as amended; §§ 19, 20, 46, and 57 of the Disciplinary Statute for Lawyers and Trainee Lawyers (DSt), Federal Law Gazette No. 474/1990 as amended; § 25 of the Administrative Penalty Act (VStG), Federal Law Gazette No. 52/1991 as amended; § 13 of the General Administrative Procedure Act 1991 (AVG), Federal Law Gazette No. 51/1991 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainants, all represented by the first complainant, claimed in their complaint dated January 18, 2023, improved on January 30, 2023, and February 7, 2023, that they were violated in their right to confidentiality by the two respondents. They explained that the H*** Bar Association deceives the public through a placebo procedure into believing that the first complainant has committed a disciplinary offense and is also criminally convicted. The criminal court has fabricated four disciplinary complaints against the first complainant, indicating that she has four criminal convictions. The proceedings are based on two district court criminal proceedings and two disciplinary proceedings at the regional court. An unlawful decision has been issued against the first complainant by the H*** Bar Association, and the legal remedies filed against the decision have not been addressed. The decision was also sent to all authorities and courts.

The second respondent, who was appointed as the chamber commissioner, then caused the first

respondent to block access to electronic legal communication (ERV). The first complainant was initially not informed about the block in the ERV. Only after consulting with the first respondent did the first complainant become aware of this circumstance. The first complainant then informed the first respondent that the decision of the H*** Bar Association was unlawful and that there was also no final court ruling or decision from the criminal court that had convicted her.

Without legal basis and without notification, the rights of the first complainant and the second complainant (the clients of the first complainant) were violated. All court files and the associated correspondence with the courts, authorities, and offices were handed over to the second respondent without legal basis. The second complainant also did not give consent. The second respondent contacted the second complainant (the clients of the first complainant) without legal basis, without power of attorney, and without a data protection declaration. The second respondent knows, through the transfer of ERV access, which court proceedings are pending and which clients have granted the first complainant a power of attorney.

also included:

- the decision dated December 13, 2022, from the H***n Bar Association regarding GZ 2022/*45*,
- a letter dated December 22, 2022, from the Second Respondent to the First Respondent,
- a letter dated December 23, 2022, from the First Complainant to the First Respondent, and
- the powers of attorney from the clients of the First Complainant.

2. The Second Respondent summarized in his statement of February 20, 2023, that with the decision of the H***n Bar Association dated December 13, 2022, the First Complainant was temporarily prohibited from exercising the legal profession. By this decision, the Second Respondent was appointed as the chamber commissioner. In the context of his responsibilities and due to the lack of willingness to cooperate from the First Complainant, he requested the First Respondent in a letter dated December 22, 2022, to suspend the ERV access of the First Complainant.

As attachments to the statement are:

- the decision dated December 13, 2022, from the H***n Bar Association regarding GZ: 2022/*45*, and
- a letter dated December 22, 2022, from the Second Respondent to the First Respondent.

3. The legally represented First Respondent stated, after an extension of the deadline until March 3, 2023, in her statement of March 3, 2023, essentially that this is an authorized transmission and billing office by the federal government. This office acts, among other things, as an interface for the Federal Computing Center. Through this, it is possible for lawyers or other entitled parties to forward submissions and resolutions to the Federal Computing Center, so that the documents can then be transmitted to the respective recipients, such as courts. At the same time, the return communication from the recipient is also processed through the Federal Computing Center to the lawyers or other entitled parties via the First Respondent.

The First Respondent only transmits the submissions and resolutions but does not access the content. Furthermore, this office acts based on contracts it has concluded with the federal government, the Bar Association, and the participants of the ERV. The First Complainant utilized the services of the First Respondent and processed the delivery or receipt of documents until the time of the suspension of her access through the provided interface.

On December 22, 2022, the First Respondent was requested by the Second Respondent to suspend the ERV access of the First Complainant (R*7*2*1), so that she could no longer send via the ERV and, on the other hand, redirect deliveries from December 13, 2022, to the Second Respondent. From the submitted decision dated December 13, 2022, it is evident that the First Complainant was temporarily prohibited from exercising the legal profession and that the Second Respondent was appointed as the chamber commissioner. Following this, the First Respondent suspended access on December 22, 2022. On December 23, 2022, access was reactivated under pressure from the First Complainant. After a legal review, the renewed suspension of the First Complainant's ERV access, which continues to this day, was carried out. The suspension of the ERV access was necessary and proportionate to comply with the request of the Second Respondent and to guarantee the suspension of the First Complainant's entitlement to practice law at least via the ERV.

As attachments to the statement are:

- the decision of the committee of the H*** Bar Association dated December 13, 2022,
- a letter of request from the second respondent dated December 22, 2022, and
- an email correspondence with the first complainant attached.

4. The complainants, all represented by the first complainant, replied - after being heard regarding the investigation results - in their statement dated March 22, 2023, that the second respondent did not have an order of appointment as a chamber commissioner. He was appointed as a chamber commissioner without an order of appointment in a proceeding in which the first complainant had no party status and her right to be heard was denied. The background was that the first complainant had uncovered a corruption scandal in which, among others, the second respondent was involved. The quorum was also not observed in the issued decision. Furthermore, there is neither a pending court case against the first complainant regarding involvement in a mafia organization, human or child trafficking, a terrorist organization, or pedophilia, nor a final conviction for any offense lasting more than six months. The second respondent unlawfully presents himself as a professor to their clients and improperly discloses their clients' data to third parties. Various deadlines have also been missed. The second respondent acts without a legal basis. The first respondent redirected the ERV access to the second respondent without a legal basis, and he, in turn, had the accounts of the first complainant blocked without a legal basis.

5. In the statement dated April 5, 2023, the second respondent summarized that the blocking of the ERV access occurs regardless of whether the respective lawyer is cooperative or not. The primary task of the chamber commissioner is to protect clients from disadvantages. The blocking of access prevents lawyers from submitting entries via the ERV to which they are no longer entitled. In the specific case, the blocking ultimately occurred at the request of the H*** Bar Association. In the context of electronic legal communication, only correspondences related to the professional activities of the first complainant would be transmitted. Before being appointed as a chamber commissioner, the second respondent had no access to the ERV of the first complainant. A mail block was not initiated; however, the second respondent requested the post office branch L***burg, as the responsible post office, to set up a forwarding order for mail addressed to the law firm address based on the order of appointment. As far as can be recalled, the request was complied with after a few days' delay. The procedure also corresponds to Austrian practice in the implementation of the relevant legal provisions, especially when the first complainant fails to fulfill her duty to cooperate. It should be noted that it was only through the forwarding order that the second respondent was able to learn, among other things, that the first complainant had unlawfully opened a new law firm account contrary to the provisional prohibition of the bar association, which, however, was only subject to the authority of the second respondent. The official mail also included the private mail of the first complainant to the second respondent. This was the case because the first complainant resides at the address of her law firm; however, the apparently private mail would be separated from the official mail and made available for collection. On January 16, 2023, the second respondent delivered all private mail of the first complainant to her law office. For reasons that are not comprehensible, she returned all the private mail. Furthermore, she is periodically requested to collect her mail. To this day, she has not complied with this request.

6. The complainants, all represented by the first complainant, stated in the context of the granted hearing on April 6, 2023, sent on April 11, 2023, in their statement dated April 25, 2023, essentially that a temporary measure had been imposed on the first complainant, revoking her license due to four criminal complaints from criminal judges. On December 22, 2022, the first complainant became aware that the first respondent had blocked her ERV access.

The first complainant explained to the first respondent that this was an unlawful action, and for this reason, her ERV access was reactivated the next day at 10:00 AM. However, on December 27, 2022, it was blocked again. The law firm Ei*** & We*** intervened as the lawyer for the first respondent. The legal representative of the first respondent is the sole authorized managing director of the Rechts*** Software GmbH and the first respondent and is also a shareholder of this company. The first

complainant considers this to be incompatible.

Furthermore, the first complainant expressly states that there is neither a criminal conviction against her nor an investigation by the public prosecutor's office initiated due to involvement in a terrorist or mafia organization, human or child trafficking, or pedophilia, or due to embezzlement of client funds or third-party funds.

The first complainant was confirmed by a letter and a meeting on Thursday, April 20, 2023, that she had received a "temporary interim representative," an adult representative. However, even this does not make it possible to prevent the delivery of mail or access to the ERV without her consent.

****A. Background Information****

The professional postal address of the first complainant is identical to the private one. All mail of the first complainant ends up at the Bar Association H*** due to the "provisional interim adult representative," which no longer officially exists, and is forwarded to the second respondent. The second respondent has not forwarded any mail to the first complainant. He allegedly handed over the mail to her father during his second attempt to enter the first complainant's law firm without legal basis. The first complainant herself did not receive this mail. The second respondent did not even verify whether it was indeed her father. Furthermore, the first complainant has only been asked twice in total to collect her mail.

7. With the decision dated April 26, 2023, the Data Protection Authority submitted a request for assistance to the District Court Ü***, the locally competent guardianship court, asking whether the first complainant currently has an adult representative and, if so, from what point in time and to what extent the adult representation is active.

8. In the submission dated May 9, 2023, the complainants, all represented by the first complainant, essentially reiterated their claims and further stated that without the legal representation of the first complainant, the client would suffer a disadvantage. Without legal basis, the access to the electronic legal traffic (ERV) of the first complainant and her accounts have been blocked, and there has been a rerouting of her private and professional mail. Furthermore, there is no indication in the announcement of the H*** Bar Association that any interim measure has ever been imposed against the first complainant. It is only ensured that a person seeking legal assistance sees the note listed with the first complainant when searching for a lawyer on the homepage. However, this note lacks specificity. This damages her reputation and misleads the public. Therefore, the first complainant demands that immediate steps be taken against the committee of the H*** Bar Association, Vice President Dr. Ernesto Vi***, the second respondent as chamber commissioner, against the first respondent and its managing partner, against the UK*** Bank, and also against Post AG.

In the submission dated May 9, 2023, there was a letter to the H*** Bar Association, dated May 3, 2023, in which the first complainant requested the cessation of all disciplinary proceedings as well as other proceedings and also the restoration of her legal practice.

9. In the submission dated May 3, 2023, which was received on May 12, 2023, the District Court Ü*** informed that no adult representative has been appointed for the first complainant.

****B. Subject of the Complaint****

Based on the submissions of the complainants, it follows that the subject of the complaint is the question of whether the first respondent has violated the complainants' right to confidentiality by blocking access to the electronic legal traffic (ERV) of the first complainant at the instruction of the second respondent and also rerouting all (including newly received) correspondence to the ERV access of the second respondent. The subject of the complaint regarding the second respondent is whether he has violated the first complainant's right to confidentiality by initiating the blocking of her ERV access and a forwarding order, thereby gaining access to all electronic and postal correspondence addressed to the first complainant.

****C. Findings of Fact****

1. The first respondent is a limited liability company registered under FN 8*1*4*4r with its registered

office in S***stadt, Q***platz *2. The purpose of the company is to operate a transmission and billing office of the federal government, to provide technical services in the field of IT, as well as to undertake analysis, consulting, planning, and concept development tasks in the field of IT. The first respondent is thus an authorized transmission and billing office that processes electronic legal traffic (ERV) for entitled participants and contractual partners.

Evidence assessment: The findings are based on the statement of the first respondent dated March 3, 2023, and the official inquiry of the commercial register regarding FN 8*1*4*4r, as well as the website https://n***.at/Impressum/, queried by the Data Protection Authority on March 23, 2023.

2. There are four disciplinary complaints against the first complainant.

Evidence assessment: The finding is based on the statement of the first complainant dated February 7, 2023, which states in part: "It has been fabricated here, in four disciplinary complaints initiated against me by the criminal judiciary, that I have four criminal convictions, which I do not have."

3. The first complainant and the second respondent are registered lawyers. The first complainant resides at T***berg 9*, W***hausen *4*1, and operates her law firm at the same address. As a result, both private and professional correspondence is sent to this address. The committee of the H*** Bar Association has temporarily prohibited the first complainant from practicing law by decision GZ 2022/*45*, dated December 13, 2022.

Second Respondent appointed as Chamber Commissioner. The prohibition of the exercise of the legal profession by the First Complainant has been published on the homepage of the Austrian Bar Association as well as in the Austrian Lawyers' Journal.

Screenshot from the homepage of the H***n Bar Association dated March 23, 2023 (formatting not displayed 1:1):

[Note by the editor: The screenshot originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It contains the information that the authorization to practice law concerning the First Complainant with the office address as stated above is suspended in accordance with § 34 para. 2 RAO.]

Screenshot from the homepage of the H***n Bar Association dated May 10, 2023 (formatting not displayed 1:1):

[Note by the editor: The screenshot originally presented here as a graphic file (result of a search in the lawyer directory) cannot be pseudonymized with reasonable effort and has therefore been removed. It contains the information that the authorization to practice law concerning the First Complainant with the office address as stated above is suspended in accordance with § 34 para. 2 RAO.]

Screenshot from the homepage of the Austrian Bar Association (formatting not displayed 1:1):

[Note by the editor: The screenshot originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It contains the notification from the Regional Bar Association that a provisional measure prohibiting the exercise of the legal profession has been imposed on the First Complainant concerning four business numbers of the Disciplinary Council, and which lawyer has been appointed as Chamber Commissioner.]

Screenshot from the decision regarding GZ 2022/*45*, dated December 13, 2022, from the H***n Bar Association (formatting not displayed 1:1):

[Note by the editor: The screenshot originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed. It contains an image of the decision with the already known content (prohibition of professional practice, appointment of a Chamber Commissioner).]

Assessment of Evidence: The findings are based on the statement of the First Respondent dated March 3, 2023, as well as the statement of the Second Respondent dated February 20, 2023, from the official inquiries of the websites

https://www.rakh***.at/anwaltssuche
and
www.rechtsanwaelte.at/,

queried by the Data Protection Authority on March 23, 2023, and May 10, 2023. The finding that the First Complainant resides at the aforementioned address and conducts her professional activities from there is derived from the official ZMR inquiry conducted on March 27, 2023, from the statement of the Second Respondent dated April 5, 2023, and the official inquiry of the homepage of the First Complainant conducted on April 21, 2023, under the URL
< http://www.rechtsanwalt-a***.at/kontakt.html >.

4. The Second Respondent informed the First Respondent, among other reasons, due to the lack of willingness to cooperate from the First Complainant, that he is exercising the function of Chamber Commissioner, that the ERV access for the First Complainant (ERV access R*7*2*1) is to be blocked, and that from December 13, 2022, the deliveries are to be transmitted to his ERV access / RA code R5*2*4*. In the context of electronic legal communication (ERV), only correspondences related to the professional activities of the First Complainant with the Second Respondent - her client - are transmitted. Thus, case-related correspondences, notifications from courts, and notifications from authorities containing the respective personal data of the complainants are transmitted to the Second Respondent. The First Respondent subsequently blocked the ERV access of the First Complainant on December 22, 2022, reactivated it on December 23, 2022, and blocked it again on December 27, 2022.

Notification from the Second Respondent to the First Respondent dated December 22, 2022 (formatting not displayed 1:1):

[Note by the editor: The screenshot originally presented here as a graphic file cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence:

The findings are based on the statement of the Second Respondent and the attachments submitted therein dated February 20, 2023. The finding that the First Complainant did not want to cooperate with the Second Respondent appears understandable to the Data Protection Authority. This is particularly because the First Complainant herself stated in her submissions that she repeatedly attempted to circumvent the ERV block or the forwarding order to the Second Respondent after receiving the decision from the H***n Bar Association regarding the suspension of her practice of law and, despite being aware of the content of the decision, continued to make every effort - as in the present proceedings - to represent individuals legally.

5. The Second Respondent requested the logistics and postal service company, Österreichische Post Aktiengesellschaft, Post Office L***burg, as the responsible post office, to establish a forwarding order - based on the appointment resolution - for the correspondence to the law office address.

****Directed postal correspondence containing personal data of the complainant****

to be established. The staff of the law firm of the second respondent have been instructed to keep apparently private mail ready for collection by the first complainant, for which she has been periodically prompted. On January 16, 2023, the second respondent delivered the previously collected private mail of the first complainant while attempting to gain access to the office premises of the first complainant. This mail was returned by the first complainant to the law firm of the second respondent. The second respondent did not open the private mail of the first complainant.

****Assessment of Evidence:**** The findings are based on the comprehensible statement from the second respondent dated April 5, 2023, and also on the fact that during the investigation no indications or evidence emerged suggesting that the second respondent opened the private mail of the first complainant. The first complainant was also unable to provide objective evidence despite being prompted (cf. parties' hearing from April 6, 2023). Consequently, the claims made by the first complainant in this regard turned out to be mere conjectures, while the submissions of the second respondent proved to be consistently coherent and comprehensible. As the Administrative Court (VwGH) states, in cases where a fact cannot be established, it must be assumed that the fact does not exist (VwGH of June 16, 1992, 92/08/0062). Overall, it must therefore be assumed that the disclosure of the private mail contents in question did not occur.

6. The first complainant submitted a complaint on January 18, 2023, improved on January 30, 2023, and February 7, 2023, to the Data Protection Authority for herself and her clients.

****Assessment of Evidence:**** The findings are derived from the initiating submission dated January 18, 2023, as well as the improvements from January 30, 2023, and February 7, 2023, made by the first complainant.

7. An adult representative for the first complainant has not been appointed.

****Assessment of Evidence:**** The finding is based on the communication from the District Court Ü***, dated May 3, 2023, received on May 12, 2023 (the communication is attached to the present file D124.0073/23).

****D. Legal Implications:****

****D.1. Subject of the Complaint (Decision Point 2)****

In the initiating submission dated January 18, 2023, the complainants only designated the first respondent as the respondent. The Data Protection Authority requested the complainants through a defect rectification order dated January 19, 2023, to clarify their submission from January 18, 2023, particularly regarding the facts to be examined (blocking of ERV access and initiating a "mail block"), from which the legal violation according to § 24 para. 2 no. 3 DSG can be derived, and also to specify the respondent(s) according to § 24 para. 2 no. 2 DSG. The complainants complied with the defect rectification order by improving their submission on January 31, 2023, by explicitly naming the first respondent and the second respondent under ad. III. 2.

According to § 13 para. 8 second sentence AVG, the amendment of the application must not change the essence of the matter and must not affect the substantive and local jurisdiction. The Administrative Court has also ruled in its decision regarding GZ Ra 2019/04/0071 on May 26, 2021, that it may only decide on an amendment of the application within the framework of § 13 para. 8 AVG if the essence of the matter is not changed and the boundary of the subject of the complaint is not exceeded (cf. also Köhler, § 28 VwGVG, in: Köhler/Brandtner/Schmelz [Eds.], VwGVG Commentary [2021] Rz. 41).

The extension of the subject of the complaint requested by the complainants in their submission dated May 8, 2023, regarding the respondents is not part of the subject of this procedure. As already stated above, the subject of the complaint is clearly evident from the initiating submission dated January 18, 2023, as well as the improvement dated January 31, 2023.

Furthermore, when assessing the procedural extension/amendment, consideration must also be given to the extent of the necessary procedural additions, and if extensive repetitions of procedural steps are required, the existence of a new application must be assumed (cf. Hengstschläger/Leeb, AVG § 13 Rz 46). This is the case here, as a new investigation procedure must be conducted against other respondents based on the submissions of the complainants from May 8, 2023.

Regarding these new subjects of complaint (against the committee of the H*** Bar Association, Vice President Dr. Ernesto Vi***, the managing partner of the first respondent, the UK*** Bank, and also against Post AG), the Data Protection Authority has therefore initiated new complaint procedures (cf. also point 2.1 of the decision of the BVwG W211 2231475-1 from October 20, 2021).

In this context, the supplementary complaint submission according to § 13 para. 8 AVG was to be rejected.

****D.2. General****

According to § 1 para. 1 DSG, everyone has the right, particularly with regard to the respect for their private and family life, to the confidentiality of their personal data, as long as there is a legitimate interest in it. The existence of such an interest is excluded if data, due to their general availability or because they cannot be traced back to the affected individual, are not subject to a confidentiality claim. According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the data subject or with their consent, are only permissible for the protection of overriding legitimate interests of another party, and in the case of interventions by a public authority, only on the basis of laws. Such laws may only provide for the use of data that is particularly worthy of protection by its nature for the safeguarding of important public interests and must simultaneously establish adequate guarantees for the protection of the confidentiality interests of the affected individuals.

§ 24 para. 1 DSG provides that any affected person has the right to lodge a complaint with the data protection authority if they believe that the processing of their personal data violates the GDPR or § 1 or Article 2 of the 1st main part. The GDPR and, in particular, the principles enshrined therein must be

taken into account when interpreting the right to confidentiality (see the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

Under "processing" according to Art. 4 No. 2 GDPR, any operation or set of operations performed on personal data, whether or not by automated means, is understood to include the collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction. The subject of the proceedings involves the personal data of the first complainant (the correspondence for her clients, including with authorities and courts) being transmitted or disclosed to the second respondent.

D.3. In the matter (Decision Point 1)

D.3.1.

Blocking

of

the

ERV access

of

the first complainant

and

redirection

to

the second respondent

Starting from the subject of the complaint, the question arises as to whether the first respondent and the second respondent have violated the first complainant's right to confidentiality according to § 1 DSG by the first respondent complying with the second respondent's request to block the first complainant's access to electronic legal communication (ERV) and furthermore redirecting all incoming correspondence to the ERV access of the second respondent, thereby disclosing it to them. The first complainant is a registered lawyer listed in the list of lawyers, to whom the Lawyers' Act (RAO) and the Disciplinary Statute for Lawyers and Trainee Lawyers (DSt) apply.

As a legal basis for the data processing in question, both respondents (see the statements of the first respondent dated March 3, 2023, and of the second respondent dated February 20, 2023, and April 5, 2023) have presented the fulfillment of a legal obligation according to Art. 6 para. 1 lit. c GDPR. For this legality requirement, there must either be a legal basis within the framework of Union law or of the respective member state. The GDPR does not require a specific law for each processing operation itself, but rather a law can also serve as the basis for multiple processing operations. Recital 45 clarifies that under Art. 6 para. 1 lit. c GDPR, processing can be justified by both private and public sector controllers - specifically by the designated respondents.

It should be noted that there are four disciplinary complaints against the first complainant (see point 2 of the findings and compare the statement of the first complainant dated February 7, 2023). According to § 19 para. 1a DSt, the Disciplinary Council can decide on a provisional prohibition of the practice of law against a lawyer as a precautionary measure (see § 19 para. 3 No. 1 lit. d DSt) if certain facts are reported by the committee, based on which there is suspicion of a disciplinary offense and urgent concern that further practice could lead to significant impairment of entrusted third-party assets, particularly in connection with the handling of client funds by the lawyer.

The Disciplinary Council of the relevant Bar Association, where the accused (specifically the first complainant) is registered at the time when the chamber lawyer becomes aware of the suspicion of the disciplinary offense (§ 20 para. 1 DSt), is responsible for exercising disciplinary authority.

In the proceedings, the committee of the competent and locally responsible H***n Bar Association issued a decision with GZ 2022/*45*, dated December 13, 2022, in which a provisional prohibition of the practice of law was imposed as a precautionary measure. In principle, the filing of an appeal is possible; however, according to § 57 para. 2 DSt, the enforcement of a precautionary measure decided by the Disciplinary Council according to § 19 DSt is not prevented by an appeal against it. § 34 para. 2 RAO stipulates that the right to practice law is suspended due to a decision issued in the

course of disciplinary proceedings prohibiting the practice of law. During the suspension of the right to practice law, membership in the Bar Association and registration in the list of lawyers remain in effect. The suspension and, if applicable, its duration must be made visible in the list of lawyers (see point 3 of the findings). According to § 34a para. 2 RAO

****D.3.2. Redirecting Postal Correspondence Addressed to the First Appellant to the Second Appellee****

Based on the submissions of the first appellant, in addition to the blocking of the ERV access, the question arises whether the second appellee has violated the first appellant's right to confidentiality according to § 1 DSG by redirecting the postal correspondence to the post office L***burg, as the competent authority.

The committee of lawyers is obliged to appoint a chamber commissioner when the authorization to practice law (§ 34 Abs. 1 and 2) is suspended. The chamber commissioner must inform the clients of the lawyer about his appointment and its legal consequences and, if necessary, advise on the transfer of mandates to other lawyers, ascertain the trust accounts of the lawyer and inform the involved parties about the possible management of the trust account by another trustee, ascertain and manage the lawyer's third-party funds, as well as ensure the proper safekeeping of the lawyer's files and the documents deposited with him. For this purpose, the affected lawyer must hand over the files and deposited documents to the chamber commissioner and provide access to the documents stored in his legal document archive.

The second appellee was appointed as chamber commissioner by decision dated December 13, 2022, in accordance with § 34a Abs. 2 RAO. The chamber commissioner has, among other tasks, the duty to inform the clients of the first appellant about his appointment and to clarify the legal consequences (cf. Vitek in Engelhart/Hoffmann/Lehner/Rohregger/Vitek, RAO11 § 34a Rz 9). The appointment of the chamber commissioner must be promptly and publicly announced on the Internet on the website of the Bar Association (cf. Vitek in Engelhart/Hoffmann/Lehner/Rohregger/Vitek, RAO11 § 34a Rz 11 (as of 1.11.2022, rdb.at)). This has been carried out by the H*** Bar Association (cf. Point 3 of the findings).

As can be seen from the statements of the first appellee dated March 3, 2023, and the second appellee dated February 20, 2023, the first appellant wanted to continue representing her clients despite being aware of the provisional prohibition of practicing law and was also unwilling to cooperate with the appointed chamber commissioner in the form of the second appellee. For this reason, the second appellee informed the first appellee and requested the immediate blocking of her ERV access and any submissions from her clients to be directed to him (cf. statement of the second appellee dated February 20, 2023). The ERV access was temporarily reactivated between December 23, 2022, and December 27, 2022, due to the pressure exerted by the first appellant. After a thorough legal examination of the situation by the first appellee, her access was blocked again.

Regarding the disclosure of correspondence that is exclusively related to professional activities (including communications from courts, notifications from authorities) within the electronic legal traffic (ERV) to the second appellee, it should be noted that he, as chamber commissioner, must inform the clients of the first appellant about his appointment and its legal consequences and, if necessary, advise on the transfer of mandates to other lawyers, ascertain the trust accounts of the lawyer and inform the involved parties about the possible management of the trust account by another trustee, ascertain and manage the lawyer's third-party funds, as well as ensure the proper safekeeping of the lawyer's files and the documents deposited with him (cf. § 34a and § 34b RAO).

A review of these provisions makes it clear that there is no violation of the right to confidentiality, as the actions taken by both appellees are based on a legal foundation. Consequently, no violation of the GDPR or DSG can be derived in this context. The Data Protection Authority notes that the first appellant herself triggered the actions of the second appellee by failing to comply with the legal obligation according to § 34a Abs. 2 last sentence RAO to hand over the files and deposited documents to the chamber commissioner - specifically the second appellee - and to provide him access to the documents stored in her legal document archive, and by refusing to cooperate with him.

For the sake of completeness, it should be noted that the presented facts must be viewed in a

differentiated manner. The Data Protection Authority is a supervisory authority established under Art. 51 GDPR, which is responsible for monitoring the General Data Protection Regulation (GDPR) and for the protection of natural persons in the processing of their personal data. Therefore, the authority is competent to examine the data processing in question regarding the disclosure to the second appellee or the blocking by the first appellee.

If the first appellant complains that a disciplinary procedure has been initiated against her, it should be pointed out that the decision to initiate such a procedure does not fall within the jurisdiction of the Data Protection Authority. This is the responsibility of the disciplinary council established for this purpose according to § 1 Abs. 2 in conjunction with § 5 DSt. It is also responsible for deciding whether there is sufficient reason to suspect that a procedure should be initiated against the accused person or whether it should not be pursued according to § 3 DSt because the lawyer's fault is so minor that his behavior has no or only insignificant consequences. The disciplinary statute for lawyers and trainee lawyers (DSt) specifically provides in § 46 ff. for the possibility of an appeal procedure to challenge findings of the disciplinary council. The Supreme Court (OGH) is responsible for deciding on the appeal.

It was therefore necessary to decide accordingly.

****Post Office****

has requested that the mail addressed to the office address of the first complainant be forwarded to their address via a forwarding order. The first complainant is a registered lawyer on the list of attorneys, to whom the Lawyers' Act (RAO) and the Disciplinary Statute for Lawyers and Trainee Lawyers (DSt) apply.

As a basis for the data processing in question, the second respondent (see the statements of the second respondent dated February 20, 2023, and April 5, 2023) cites the fulfillment of a legal obligation pursuant to Art. 6 para. 1 lit. c GDPR.

As already stated in the legal assessment under point D.3.1., there were disciplinary complaints against the first complainant (see point 2 of the findings and compare the statement of the first complainant dated February 7, 2023). According to § 19 para. 1a DSt, the Disciplinary Council can decide on a provisional prohibition of the practice of law as a precautionary measure against a lawyer (see § 19 para. 3 no. 1 lit. d DSt).

The second respondent was appointed as chamber commissioner by decision dated December 13, 2022, pursuant to § 34a para. 2 RAO. The chamber commissioner has, among other tasks, the duty to inform the clients of the first complainant about his appointment and to clarify the legal consequences (see Vitek in Engelhart/Hoffmann/Lehner/Rohregger/Vitek, RAO11 § 34a Rz 9). The appointment of the chamber commissioner must be announced on the internet on the website of the Bar Association immediately and made generally accessible (see Vitek in Engelhart/Hoffmann/Lehner/Rohregger/Vitek, RAO11 § 34a Rz 11 (as of November 1, 2022, rdb.at)). This has been done by the H*** Bar Association (see point 3 of the findings).

As indicated in the statements of the second respondent dated February 20, 2023, and April 5, 2023, the first complainant wanted to continue representing her clients despite being aware of the provisional prohibition of her practice of law and was also not willing to cooperate with the appointed chamber commissioner in the form of the second respondent. This is evident not only from the statements but also from the behavior of the first complainant before the Data Protection Authority, as she still submitted the complaint in question on behalf of her clients despite being aware of the provisional prohibition of her practice of law. Furthermore, she attempted to circumvent both the ERV block and the forwarding order to the second respondent (see the assessment of evidence regarding point 3 of the findings).

Due to the lack of willingness to cooperate from the first complainant, the second respondent informed the post office branch L***burg, as the responsible post office, about the situation with reference to the appointment decision and established a forwarding order (see point 5 of the findings). In light of the above circumstances, it becomes clear that the second respondent, as a lawfully appointed chamber commissioner, would not have been able to fulfill the tasks to which he is legally obligated without the establishment of a forwarding order (see §§ 34a, 34b RAO).

The Data Protection Authority does not overlook that—as stated under point 3 of the findings—the private and professional postal address of the first complainant is identical, which she also confirmed in her statement dated April 25, 2023. As can be seen from the findings under point 5 of the present decision, the opening of the private mail, which was contested by the first complainant, did not occur, and therefore, there was no infringement of the first complainant's right to confidentiality (see also the decision dated March 4, 2020, GZ DSB-D124.256/0004-DSB/2019).

In general, all facts on which an administrative decision is to be based, i.e., from which the relevant factual situation is composed according to the authority's view, require proof. Unless otherwise provided by law, full proof of a fact must be provided. This means that the authority must obtain certainty regarding the existence of the factual elements relevant to the decision (i.e., for example, regarding an actual event).

The first complainant also did not comply with the request of the Data Protection Authority (see the request for a statement dated April 6, 2023) to provide evidence that her private mail was actually opened by the second respondent. The second respondent explained in his statement dated April 5, 2023, that he and his office staff separate private mail from professional mail. Regarding the private mail, the second respondent requested the first complainant to collect it, which she ignored. Subsequently, the second respondent personally delivered it to the office premises of the first complainant on January 16, 2023, after which it was returned to him by her.

The complaint regarding a possible violation of the right to confidentiality concerning the private mail has therefore proven to be unfounded, especially since the first complainant has not succeeded in demonstrating a possible infringement. In the case of non-establishment, it must be assumed that the fact does not exist (see the ruling of the VwGH dated June 16, 1992, ZI. 92/08/0062).

A review of these provisions makes it clear that there is also no violation of the right to confidentiality regarding the professional mail of the first complainant, as the actions taken by both respondents are based on a legal foundation (Art. 6 para. 1 lit. c GDPR). Therefore, no violation of the GDPR or DSG can be derived in this context. Regarding the private mail, it must be reiterated that no evidence of an actual opening has been provided by the first complainant, and thus there is a lack of objective evidence for a violation of the right to confidentiality.

It was therefore decided accordingly.

****Decision Point 3****

The complaints filed by the first complainant on behalf of herself and her clients (second complainant) were submitted on January 18, 2023. Already on December 13, 2022, the exercise of the first complainant's practice of law was suspended by decision GZ 2022/*45*. This means that from that point on, the first complainant was no longer entitled to represent her clients (second complainant) lawfully as a lawyer. Consequently, the complaints submitted on behalf of her clients had to be dismissed accordingly.

It was therefore decided accordingly.

****Decision Point 4****

From Art. 77 para. 1 GDPR and § 24 para. 1 and 5 DSG, a subjective right to initiate criminal proceedings against a certain responsible party cannot be derived. In this regard, the principle of *ex officio* applies according to § 25 para. 1 VStG (see Fister in Lewisch/Fister/Weilguni (eds), VStG Commentary² [2017] § 25 Rz 1).

The related request was therefore to be dismissed.